

CHAPTER 19*Isle of Man (Customs) Act, 1950***ARRANGEMENT OF SECTIONS****Section**

1. Hydrocarbon oils.
2. Power methylated spirits.
3. Ale and beer.
4. Annual duties (continuation).
5. Removal or reduction of additional duties in respect of iron and steel tubes, etc.
6. Repayment of customs duty where goods returned or destroyed by importer.
7. Duty free goods for H.M. ships.
8. Short title and repeal.

SCHEDULE.—Enactments repealed.

An Act to amend the law with respect to customs in the
Isle of Man. [28th July 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) As from the twenty-second day of April, nineteen hundred and fifty, the rate both— Hydrocarbon oils.

(a) of the duty of customs imposed on hydrocarbon oils removed or imported into the Isle of Man by section four of the Act of 1930; and

(b) of the rebate to be allowed under subsection (2) of that section on the delivery for home consumption of any goods other than light oils;

shall, subject to the next following subsection, be eighteenpence a gallon (instead of ninepence a gallon as provided by subsection (1) of section two of the Act of 1938).

(2) As from the fourteenth day of July, nineteen hundred and fifty, the said section four and the enactments amending it shall apply to hydrocarbon oils manufactured or produced in Great Britain or Northern Ireland otherwise than by refining hydrocarbon oils imported into Great Britain or Northern Ireland, as they apply to other hydrocarbon oils, except that the rate of the duty and of the rebate therefrom shall be less by ninepence a gallon or such other amount per gallon as may from time to time by virtue of any order of the Treasury under section two

of the Finance Act, 1950, be the difference in Great Britain and Northern Ireland between the rate of the customs duty and that of the excise duty on hydrocarbon oils.

Any regulations of the Commissioners under the said section four which are in force at the commencement of this Act shall have effect in relation to hydrocarbon oils manufactured or produced as aforesaid as they have effect in relation to other hydrocarbon oils.

(3) For the purposes of the customs duty charged on hydrocarbon oils by the said section four, oils satisfying any of the requirements specified in the definition of light oils in paragraph (b) of subsection (5) of that section shall nevertheless be treated as not being light oils if they are for the time being so treated for the purposes of the customs and excise duties in Great Britain and Northern Ireland by virtue of a direction of the Treasury under subsection (1) of section five of the Finance Act, 1950.

Power
methylated
spirits.

2. As from the twenty-second day of April, nineteen hundred and fifty, the rate of the duty of customs imposed on certain methylated spirits by section three of the Act of 1938 shall be eighteenpence a gallon (instead of ninepence a gallon as provided by the said section three).

Ale and beer.

3.—(1) As from the twenty-first day of June, nineteen hundred and fifty, in lieu of the customs duties theretofore payable on ale and beer, there shall, until the first day of August, nineteen hundred and fifty-one, be payable on ale and beer removed or imported into the Isle of Man a duty of customs at the following rate:—

£ s. d.

For every thirty-six gallons, where the worts were before fermentation of a specific gravity of one thousand and fifty-five degrees ...	8 15 0
---	--------

with a proportionate increase or decrease according to the specific gravity of the worts thereof before fermentation.

(2) As from the fourteenth day of July, nineteen hundred and fifty, there shall, until the first day of August, nineteen hundred and fifty-one, be payable in addition to the duty under the foregoing subsection a duty of customs at the rate of one pound for every thirty-six gallons on all ale and beer removed or imported into the Isle of Man except ale and beer being an Empire product within the meaning of section five of the Act of 1919 as amended by any subsequent enactment.

Annual duties
(continuation).

4.—(1) Subject to the provisions of this section, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column

of the following Table, by the respective enactments set out in the second column of that Table, shall continue to be payable until the first day of August, nineteen hundred and fifty-one:—

TABLE

Description of goods	Enactment imposing duty
Cocoa	Section four of the Act of 1924.
Hops and extracts, essences and other similar preparations (other than hop oil) made from hops.	Section five of the Act of 1925.
Hop oil	Section three of the Act of 1929.
Matches	Section four of the Act of 1949.
Mechanical lighters	Section five of the Act of 1949.
Silk and artificial silk and articles made wholly or in part of silk or artificial silk.	Section seven of the Act of 1925, as amended by section eight of the Act of 1926, section nine of the second Act of 1932, section four of the Act of 1933, section three of the Act of 1936, section three of the Act of 1937, section four of the Act of 1947 and sub-section (2) of section five of the Act of 1948.
Spirits	Section two of the Act of 1948.
Sweets	Section three of the Act of 1949.
Tea	Section one of the Act of 1949.
Tobacco	Section one of the Act of 1948.
Wines	Section two of the Act of 1949.

(2) Where any enactment set out in the second column of the foregoing Table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August, nineteen hundred and fifty-one, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act) which are for the time being in force.

5. In section six of the Act of 1936 (which provides that orders of the Treasury under section six of the Finance Act, 1936, removing or reducing the additional duty on iron and steel goods of certain classes or descriptions shall have similar effect in the Isle of Man) any reference to the said section six of the Finance Act, 1936, shall include a reference to that section as extended by section nine of the Finance Act, 1950, in relation to tubes, pipes and pipe and tube fittings. Removal or reduction of additional duties in respect of iron and steel tubes, etc.

Repayment
of customs
duty where
goods returned
or destroyed
by importer.

6.—(1) Subject to such conditions as the Commissioners may prescribe for the protection of the revenue, where it is shown to the satisfaction of the Commissioners—

(a) that goods were imported into the Isle of Man in pursuance of a contract of sale and that the description, quality, state or condition of the goods was not in accordance with the contract or that the goods were damaged in transit; and

(b) that the person importing the goods, with the consent of the seller, either—

(i) returned the goods unused to the seller and for that purpose entered the goods before shipment; or

(ii) destroyed the goods unused;

the person importing the goods shall be entitled to obtain from the Commissioners repayment of any duty of customs paid on the importation of the goods into the Isle of Man.

(2) Nothing in this section shall apply to goods imported on approval or on “sale or return” or other similar terms or to goods brought into the Isle of Man from Great Britain or Northern Ireland.

Duty free
goods for
H.M. ships.

7.—(1) No customs duty shall be chargeable on any goods brought into the Isle of Man from Great Britain or Northern Ireland if, in Great Britain or Northern Ireland, the goods have been exempted from customs or excise duties by virtue of section twenty of the Finance Act, 1950 (which relates to the supply of duty free goods to His Majesty's ships and the Admiralty), or any customs or excise duty paid on the goods has been drawn back by virtue of that section.

(2) On the coming into force of the first regulations under the said section twenty, sections one hundred and twenty-one to one hundred and twenty-five of the Customs Consolidation Act, 1876 (which provide for the supply of wines and tobacco free of duty to persons serving in the navy) shall cease to have effect in so far as they extend to the Isle of Man.

Short title and
repeal.

8.—(1) This Act may be cited as the Isle of Man (Customs) Act, 1950.

(2) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE

Section 8.

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
39 & 40 Vict. c. 36.	The Customs Consolidation Act, 1876.	As from the coming into force of the regulations mentioned in section seven of this Act, sections one hundred and twenty-one to one hundred and twenty-five in so far as they extend to the Isle of Man.
20 & 21 Geo. 5. c. 42.	The Isle of Man (Customs) Act, 1930.	Subsection (1) of section four, from the word "not" onwards.
21 & 22 Geo. 5. c. 34.	The Isle of Man (Customs) Act, 1931.	Section one.
22 & 23 Geo. 5. c. 16.	The Isle of Man (Customs) Act, 1932.	Subsection (1) of section twenty.
23 & 24 Geo. 5. c. 40.	The Isle of Man (Customs) Act, 1933.	Section sixteen.
1 & 2 Geo. 6. c. 68.	The Isle of Man (Customs) Act, 1938.	Subsections (1) and (3) of section two.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Customs Consolidation Act, 1876	39 & 40 Vict. c. 36.
Isle of Man (Customs) Act, 1930	20 & 21 Geo. 5. c. 42.
Isle of Man (Customs) Act, 1931	21 & 22 Geo. 5. c. 34.
Isle of Man (Customs) Act, 1932	22 & 23 Geo. 5. c. 16.
Isle of Man (Customs) Act, 1933	23 & 24 Geo. 5. c. 40.
Finance Act, 1936	26 Geo. 5 & 1 Edw. 8. c. 34.
Isle of Man (Customs) Act, 1938	1 & 2 Geo. 6. c. 68.

